

The Family Court of the State of Delaware

In and For ☐ New Castle County ☐ Kent County ☐ Sussex County

PETITION FOR STANDBY GUARDIANSHIP OF A MINOR

Petitioner

Name	D.O.B.
Street Address	
P.O. Box Number	
City/State/Zip Code	
Phone Number	
Relation to Child(ren)	
Attorney Name	
Interpreter needed? ☐ Yes ☐ No Language	

Respondent

Name	D.O.B.
Street Address	
P.O. Box Number	
City/State/Zip Code	
Phone Number	
Relation to Child(ren)	
Attorney Name	
Interpreter needed? ☐ Yes ☐ No Language	

File Number

Petition Number

2nd Petitioner (if any)

Name	D.O.B.
Street Address	
P.O. Box Number	
City/State/Zip Code	
Phone Number	
Relation to Child(ren)	
Attorney Name	
Interpreter needed? ☐ Yes ☐ No Language	

2nd Respondent (if any)

Name	D.O.B.
Street Address	
P.O. Box Number	
City/State/Zip Code	
Phone Number	
Relation to Child(ren)	
Attorney Name	
Interpreter needed? ☐ Yes ☐ No Language	

Guardian Ad Litem (if any)

Name
Law Firm
Office Address
City/State/Zip Code
Phone Number

IN THE INTEREST OF THE FOLLOWING CHILD(REN): (**Complete the table below for each child for whom Standby Guardianship is sought.** Attach additional sheets if necessary.)

Child's Name	Child's Date of Birth	Child's Place of Birth (City, State)	Child's Gender (Check one)
_____	_____	_____	☐ Male ☐ Female
_____	_____	_____	☐ Male ☐ Female
_____	_____	_____	☐ Male ☐ Female

1. Complete the table below regarding the child(ren)'s parents (individuals holding parental rights):

	NAME	Address	Date of Birth
MOTHER	_____	_____	_____
FATHER	_____	_____	_____

2. If you do not know the name/address of the child(ren)'s mother and/or father, write in the space provided below what you have done to try to locate him/her/them.

➤ I have attached to this Petition the following affidavits:

☐ **Affidavit that a Party's Address is Unknown**

3. Name(s) of the person(s) or organization **holding parental rights** of the child(ren):

Address of person(s) or organization:

4. Name(s) of the person(s) or organization **having the guardianship, care, control or custody** of the child(ren):

Address of person(s) or organization
if address is different from address of
Petitioner(s):

5. Name(s) of the person(s) **to whom standby guardianship** shall be vested if this Petition is granted

Address of person(s) or organization
if address is different from address of
Petitioner(s):

6. Proposed guardian(s)' relationship to child(ren) if proposed guardian is **NOT** the Petitioner:

7. Please check all that apply:

☐ The following child(ren) is/are not yet 14 years of age or older:
OR

☐ The child(ren) is/are 14 years of age or older and consents to (agree with) this Petition
(*Attach Affidavit of Consent executed by each child(ren) who consents*) Name(s) of
child(ren) 14 years of age or older who consent(s):

☐ The child(ren) is/are 14 years of age or older does/do NOT consent to (agree with) this
Petition. Name(s) of child(ren) 14 years of age or older who do NOT consent:

8. I am filing this petition because: (Check ALL that apply)

☐ The child(ren)'s parent(s) agree that I/we should become the guardian(s) of the child(ren)
(Attach an Affidavit of Consent executed by the parent(s) who agree).

☐ The child(ren)'s parent(s) are deceased. (Attach a certified copy of the death certificate)

☐ The child(ren) is/are dependant and/or neglected based on the following reason(s):

☐ It is in the child(ren)'s best interest to appoint the above referenced standby guardian
because:

9. The proposed standby guardian's qualifications to serve are as follows:

10. The triggering event(s) that shall cause the authority of the standby guardian to become effective are
as follows:

11. There is a significant risk that the parent, custodian or guardian will die, become incapacitated or become debilitated within two (2) years of the filing of this petition.

☐ I have attached supporting documentation from the attending physician as defined by 13 Del.C. §2362.

12. Name(s) of the person(s) **to whom standby guardianship** shall be vested as an **alternate** if the person named in this Petition is unable to serve:

Address of above referenced
person(s):

13. The qualifications of the above referenced alternate stand-by guardian are as follows:

WHEREFORE, Petitioner(s) seek appointment of _____ as Standby Guardian(s) of the above named minor child(ren).

Petitioner

Date

2nd Petitioner (if any)

Date

Sworn to subscribed before me:

Sworn to subscribed before me:

Clerk of Court/Notary Public

Date

Clerk of Court/Notary Public

Date